

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-28

COOL LIVING LLC,

COMPLAINANT,

v.

ALPI U.S.A., INC.,

ALPI AIR & SEA A/S,

RESPONDENTS.

MOTION FOR EXTENSION OF THE JULY 13 DEADLINE TO DEPOSE
MR. MICHAEL HAAHR HANSEN

Complainant, Cool Living LLC (“Cool Living”), through its undersigned counsel, Holland & Knight LLP (the “Firm”),¹ respectfully submits this Motion for Extension of the July 13 Deadline to Depose Michael Haahr Hansen (“Motion”) (“Mr. Haahr Hansen”).

This Motion is submitted following the Presiding Officer’s July 6, 2026 Order on Michael Haahr Hansen’s Motion to Quash Deposition Subpoena (“July 6 Order”), whereby the Presiding Officer granted the motion of Mr. Haahr Hansen, “subject to the conditions set forth in” the July 6 Order. The July 6 Order conditions outlined certain paths for proceeding ahead with obtaining

¹ The Firm acknowledges its ongoing obligation, pursuant to the Presiding Officer’s prior Orders, to represent and defend Cool Living in connection with the depositions of Mr. Haahr Hansen, Ms. Anna Farkas, and Mr. Tony Hopkins. Should the instant Motion be granted, the Firm further recognizes its responsibility to continue representing Cool Living with respect to Mr. Haahr Hansen’s deposition and therefore respectfully requests that any Order on this Motion expressly reflect and authorize that continued representation.

the testimony of Mr. Haahr Hansen: (1) prior to July 13, 2026 pursuant to voluntary appearance or, alternatively, (2) that the parties may seek an extension of the current period in order to carry out the deposition pursuant to a subpoena in compliance with the applicable Rules. Shortly after the Presiding Officer issued the July 6 Order, the Firm sent an email to opposing counsel to discuss the logistics of scheduling the Mr. Haahr Hansen deposition, including this instant Motion, because the current scheduling order provides Monday, July 13, 2026, as the last day to take the deposition of Mr. Haahr Hansen and this Motion is to be filed seven days before a due date. ***See Exhibit 1.***

Counsel for ALPI advised that Mr. Haahr Hansen maintains his position that he will not appear voluntarily, thereby leaving Cool Living no choice but to pursue the issuance of a new subpoena to effectuate his deposition testimony.² *Id.* Pursuant to the Presiding Officer's guidance in the July 6 Order and in order to comply with the applicable Rules under Section 502.132(c), Cool Living submits the instant Motion requesting an extension to August 13, 2026 for the limited purpose of deposing Mr. Haahr Hansen in his individual capacity pursuant to subpoena.

I. Applicable Standards

This Motion is filed in consideration of 46 C.F.R. § 502.102, which allows motions for enlargement of time to “be granted upon a showing of good cause” if “received at least seven (7) days before the scheduled filing date.” Cool Living filed the instant Motion 7 days before the scheduled filing date. Cool Living respectfully submits that good cause exists here to support a limited extension of the current July 13, 2026, deadline to permit Cool Living to seek a new

² So that the Presiding Officer has the complete record of the Parties positions as of the filing this evening, Cool Living includes the entire email chain between counsel this afternoon and evening. While the undersigned left two voice messages this afternoon and evening with counsel for Respondents seeking its position, no response was received, so this email chain represents the full engagement between counsel.

subpoena to effectuate the testimony of a key witness, Mr. Haahr Hansen, in compliance with the 20-day rule found at 46 C.F.R. § 501.132(c).

II. Argument

Good cause exists to extend the discovery deadline for the limited purpose of taking the deposition of Mr. Haahr Hansen. The extension remains narrow and limited for the sole purpose of effectuating the deposition of Mr. Haahr Hansen by subpoena as his counsel has reaffirmed he will not provide testimony voluntarily.

a. Lack of Notice as to the Purported Change in Employment of Mr. Haahr Hansen

The first time Cool Living learned Mr. Haahr Hansen was no longer employed with Respondents was when Respondents filed its opposition to Complainant's motion seeking the extension of time for taking his deposition. *See* Respondents' Opposition to Complainant's Motion for Extension dated June 22, 2026.³

In an email dated Sunday, June 14, 2026, Cool Living wrote to counsel for ALPI and requested that "ALPI not object to an extension of the discovery deadline only with respect to the deposition of ALPI's Michael Hansen Haahr. We are available this week for a meet and confer if ALPI opposes the motion." ***See Exhibit 2.*** Cool Living includes this email chain because the response by ALPI is instructive here. One of the reasons Cool Living provided as to the basis of its extension motion cited Respondent's initial disclosures: "Mr. Haahr was the first person named by ALPI in its January 21, 2026 initial disclosures as having relevant knowledge in response to written discovery served by the parties." *See* Exhibit 2 at 5 bullet three.

When Respondents replied to the request, it should have immediately responded that Mr. Haahr Hansen was no longer employed by Respondents. **Respondents said nothing.** Not a word

³ No docket number is listed because, as of July 6, 2026, it is not filed on the FMC docket.

concerning the initial disclosures, let alone the employment status of Mr. Haahr Hansen. Respondents did not immediately (*or any time thereafter*), amend their initial disclosures. Respondents' statements concerning Mr. Haahr Hansen were only, "Respondents do not agree to Cool Living's proposed extension to take Mr. Haahr's deposition." *See Exhibit 2 at 2.*

This is improper practice; until then, Cool Living reasonably relied on Respondents' initial disclosures, which identified Mr. Haahr Hansen as a relevant witness with ALPI affiliated contact information and directed Cool Living to coordinate testimony through Respondents' counsel. Had Cool Living been timely informed that Mr. Haahr Hansen was no longer employed by Respondents and would not appear voluntarily, a subpoena could have been pursued, and the extension motion would have reflected the correct record. Respondents should not continue to benefit from this omission of important information concerning the employment status of Mr. Haahr Hansen.

b. Cool Living Acted Diligently to Arrange for the Testimony of Mr. Haahr Hansen Following the June 24 Order.

Following the Presiding Officer's June 24 Order on Complainant's Motion for Extension of Discovery Deadline (Dkt. 30) ("June 24 Order") permitting Mr. Haahr Hansen's deposition, Cool Living made every effort to work cooperatively with ALPI's counsel to accomplish the deposition within the existing discovery schedule. In the June 29, 2026, email accompanying the request for the issuance of a third-party subpoena, the Firm took the step of copying counsel for Respondents when making the submission. ***See Exhibit 3.*** Cool Living provided a recap of the state of affairs arranging the deposition of Mr. Haahr Hansen and the representations made by counsel for Respondents concerning the subpoena. *Id.*

Respondents counsel advised only that Mr. Haahr Hansen would not appear voluntarily and that a subpoena would therefore be necessary to effectuate his testimony. **See Exhibit 4.**⁴ At no point during that discussion did counsel suggest Mr. Haahr Hansen would be unavailable before July 13, 2026, that the timing of any subpoena would present an issue, or that Respondents intended to challenge the deposition through a motion to quash. Moreover, as counsel for Respondents were copied on the June 29, 2026 email to the FMC with the subpoena request, they could have immediately corrected the record if there was any misstatement concerning the subpoena email recap. It did not. If Respondents had raised any issue concerning the subpoena, Cool Living would not have submitted the subpoena on June 29, 2026 and instead worked with counsel to identify an alternative path forward, if any, before submitting the request for the issuance of the third-party subpoena.⁵

c. Cool Living's Earlier Discovery Efforts Inform the Propriety of this Request

Cool Living respectfully wishes to address the timeline of discovery as to Mr. Haahr Hansen in light of the concerns identified by the Presiding Officer in the June 24 Order and the timeline being raised again in the July 6 Order at page 2, bullet 1. The Presiding Officer noted in the June 24 Order:

Complainant offers no explanation whatsoever for why no deposition was taken during the period from January 21, 2026, when Michael Haahr was identified as a person with knowledge in Respondents' initial disclosures, and May 12 and 13, 2026, a period of more than three months... For this reason, I find that Complainant failed to exercise due diligence in conducting discovery and has not established

⁴ This email chain reflects a recap following the call between the Firm and counsel for Mr. Haahr Hansen. It addresses the proposed dates and the path forward Cool Living intended to take as no objection whatsoever was raised on the call between counsel. Counsel for Respondents did not reply to the June 29, 2026 10:17 AM recap email to correct or clarify any statement.

⁵ Respondents first objection was received in a July 2, 2026 email from Respondents concerning sharing its draft Motion to Quash. It was not until after Respondents advised of its intent to move to quash the subpoena that Cool Living learned Respondents' position.

good cause to extend the deadline in a manner that would impact the remaining schedule.

June 24 Order at 4. Because the June 24 Order finding on good cause may have relevance to this Motion request and meeting the good cause standard, Cool Living addresses the discovery timeline to provide additional context for the Presiding Officer.

- Respondents identified Mr. Haahr Hansen in their Initial Disclosures on January 21, 2026;
- The Parties exchanged written discovery requests for documents and interrogatory requests on March 11, 2026;
- The Parties served their respective responses to these requests on April 10, 2026; and
- The Parties produced documents on April 30, 2026; Cool Living produced 1,372 documents (10,251 pages) and ALPI has produced 395 documents (2,058 pages).

The Respondents' documents and communications responsive to Cool Living's discovery requests, therefore, were served on the last day of the document discovery phase in the scheduling order, April 30, 2026. As a result, Cool Living did not have access to the Respondents' produced documents concerning Mr. Haahr Hansen until that date. Post April 30 production, during the review of the over 2,000 pages of newly produced materials, the irreconcilable differences arose between Cool Living and the Firm, resulting in the notice of withdrawal of counsel on May 12 and 13, 2026, and ultimately the Motion to Withdraw (Dkt. 20) filed on June 4, 2026. Cool Living respectfully submits this timeline provides further context and support to permit this limited extension for the testimony of Mr. Haahr Hansen pursuant to subpoena.

III. Meet and Confer

This Motion is made in compliance with the meet and confer requirements of 46 C.F.R. § 502.71. On July 6, 2026, the Firm contacted counsel for ALPI to seek its position on the instant

Motion and addressed the good cause basis for allowing extension. Counsel for ALPI advised that “[i]f Cool Living intends to proceed by subpoena or seek an extension, we do not agree to waive any opposition and reserve all rights.” See Exhibit 1. The Firm followed up to seek its official position regarding the Motion and received no response. *Id.*

IV. Conclusion

For the foregoing reasons, Cool Living submits that the Presiding Officer’s findings in the June 24 Order as to obtaining the testimony of Mr. Haahr Hansen, as summarized today in the July 6 Order, that “the balance of competing interests tips in favor of allowing Complainant one last opportunity to develop the record fully”(July 6 Order at 2 bullet 5), support the granting of this limited extension Motion. Cool Living respectfully requests that the Presiding Officer grant its Motion for Extension of Time and extend the discovery deadline to August 13, 2026, to allow ample time for the issuance of the subpoena and any objections by Mr. Haahr Hansen in light of counsel’s reservation of rights concerning same.

Respectfully Submitted,

Dated: July 6, 2026

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document at the following email addresses:

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/s/ Ashleigh T. Higgs